

Civil Rights

AI Harm as a Civil Rights Issue

Artificial intelligence systems increasingly mediate access to employment, healthcare, housing, education, credit, and public services. When these systems produce discriminatory or exclusionary outcomes, the resulting harm is not merely technical or operational, it is **civil rights harm**.

Historically, civil rights frameworks have relied on three pillars:

1. **Identifiable decision-makers**
2. **Traceable decision processes**
3. **Accessible mechanisms for challenge and redress**

Modern AI systems routinely erode all three.

The Glass Substrate Protocol (GSP) is designed to restore these pillars **without prohibiting innovation**.

Restoring Due Process in Automated Decision-Making

GSP operationalizes long-standing civil rights principles that courts and regulators already recognize:

- **Traceability**

Comparable to evidentiary chains in discrimination and administrative law

→ Who decided, how, and on what basis

- **Explainability at the level of impact**

Comparable to disparate impact analysis

→ Not every internal mechanism, but the factors that materially influence outcomes

- **Accountable ownership**

Comparable to doctrines rejecting “collective invisibility” as a defense

→ A named human responsible for deployment and oversight

- **Foreseeability of harm**

Comparable to negligence and duty-of-care standards

→ Institutions must define, in advance, what constitutes unacceptable harm

GSP does **not** create new civil rights law.

It creates the **infrastructure required to enforce existing rights** in automated contexts.

Why Logging Is a Rights Issue

In civil rights cases, lack of records has historically enabled abuse.

GSP treats logging not as an engineering convenience, but as a **rights-preserving mechanism**:

- Without logs, discrimination becomes unprovable
- Without logs, accountability becomes speculative
- Without logs, harm becomes deniable

By making decision reconstruction mandatory, GSP prevents the procedural erasure of harm.

The Role of G-BALO in Rights Protection

The Governing Board for AI Liability Oversight (G-BALO) functions analogously to specialized tribunals in other rights domains:

- Labor boards
- Environmental review boards
- Human rights commissions

G-BALO does not replace courts.

It creates **structured, intelligible records** so courts, regulators, and communities are not forced to reason in the dark.

4. “Why G-BALO Exists” Regulator-Facing Rationale

(This is the language you use with agencies, legislators, and oversight bodies)

The Accountability Gap in AI Governance

AI governance today suffers from a structural gap:

- Regulators are asked to assess harm without access to usable technical evidence
- Courts are asked to assign responsibility where decision-making is distributed and opaque
- Impacted communities are asked to trust systems they cannot inspect or contest

This gap does not arise from bad faith alone.

It arises from **mismatched institutional design**.

G-BALO exists to close this gap.

What G-BALO Is , and Is Not

G-BALO is:

- An independent standards and oversight model
- A mechanism for structured evidence review
- A forum for multidisciplinary evaluation of AI harm

G-BALO is not:

- A regulator
- A court
- A replacement for statutory authority

Its outputs are **findings, not verdicts** — designed to inform enforcement, not supplant it.

Why Existing Mechanisms Are Insufficient

Traditional compliance models assume:

- Stable, inspectable systems
- Clear separation between design and deployment
- Observable causal chains

AI systems violate all three assumptions.

As a result:

- Harm is discovered late
- Responsibility is diffused
- Remedies are delayed or denied

G-BALO introduces **procedural discipline** where informal discretion currently dominates.

Regulatory Value Proposition

For regulators and policymakers, G-BALO provides:

- **Standardized evidentiary artifacts** (logs, deployment histories, declared constraints)
- **Pre-analyzed technical records** that reduce investigative burden
- **Clear accountability mappings** across vendors, deployers, and operators
- **Early-warning signals** before harm becomes systemic

This enables **smarter enforcement**, not heavier enforcement.

Jurisdictional Compatibility

G-BALO is intentionally jurisdiction-agnostic:

- It does not assert statutory power
- It aligns with existing administrative and civil law

- It supports adoption through reference, incorporation, or delegation

In this sense, G-BALO functions as **infrastructure for governance**, not governance itself.

5. One-Page Doctrine: The Unifying Theory

(This is the document that sits "above" GSP, G-BALO, and Neo-Agora)

The Core Claim

People deserve to understand, contest, and find dignity in systems that shape their lives.

When institutions deploy systems that make consequential decisions, **opacity is not neutrality** — it is power exercised without accountability.

Three Failures We Refuse to Accept

1. Epistemic Failure

"We don't know what happened."

2. Moral Evasion

"The system is too complex to explain."

3. Institutional Abdication

"No one is responsible."

These are not technical limitations.

They are design choices.

Three Infrastructural Responses

1. Glass Substrate Protocol (GSP)

Ensures decisions leave inspectable traces.

Transforms automated action into accountable process.

2. G-BALO

Creates a place where those traces can be examined seriously, collectively, and with consequence.

3. Neo-Agora

Ensures institutions do not strip people of recognition, ceremony, or belonging simply because participation is mediated by technology.

What This Is Ultimately About

This work is not anti-technology.

It is anti-erasure.

It insists that:

- Harm must be legible
 - Responsibility must be assignable
 - Dignity must be designed, not assumed
-

The Design Ethic

If a system cannot be explained, it should not decide.

If a harm cannot be traced, it will be repeated.

If a person cannot be heard, they will be excluded.

We build infrastructure so that none of these become “just how things are.”

This doctrine does not ask for trust.

It asks for **structures worthy of trust.**